

General Act of the Conference of Berlin
Berlin, Germany
Signed February 26, 1885

GENERAL ACT OF THE CONFERENCE AT BERLIN OF THE PLENIPOTENTIARIES OF
GREAT BRITAIN, AUSTRIA-HUNGARY, BELGIUM, DENMARK, FRANCE, GERMANY,
ITALY, THE NETHERLANDS, PORTUGAL, RUSSIA, SPAIN, SWEDEN AND NORWAY,
TURKEY AND THE UNITED STATES RESPECTING: (1) FREEDOM OF TRADE IN THE
BASIN OF THE CONGO; (2) THE SLAVE TRADE; (3) NEUTRALITY OF THE
TERRITORIES IN THE BASIN OF THE CONGO; (4) NAVIGATION OF THE CONGO; (5)
NAVIGATION OF THE NIGER; AND (6) RULES FOR FUTURE OCCUPATION ON THE
COAST OF THE AFRICAN CONTINENT

In the Name of God Almighty.

Her Majesty the Queen of the United Kingdom of Great Britain and Ireland, Empress of India;
His Majesty the German Emperor, King of Prussia; His Majesty the Emperor of Austria, King of
Bohemia, etc, and Apostolic King of Hungary; His Majesty the King of the Belgians; His
Majesty the King of Denmark; His Majesty the King of Spain; the President of the United
States of America; the President of the French Republic; His Majesty the King of Italy; His
Majesty the King of the Netherlands, Grand Duke of Luxemburg, etc; His Majesty the King of
Portugal and the Algarves, etc; His Majesty the Emperor of all the Russias; His Majesty the
King of Sweden and Norway, etc; and His Majesty the Emperor of the Ottomans,

WISHING, in a spirit of good and mutual accord, to regulate the conditions most favourable to
the development of trade and civilization in certain regions of Africa, and to assure to all
nations the advantages of free navigation on the two chief rivers of Africa flowing into the Atlantic Ocean;

BEING DESIROUS, on the other hand, to obviate the misunderstanding and disputes which might in future
arise from new acts of occupation (prises de possession) on the coast of Africa;

and concerned, at the same time, as to the means of furthering the moral and material well- being of the native
populations;

HAVE RESOLVED, on the invitation addressed to them by the Imperial Government of
Germany, in agreement with the Government of the French Republic, to meet for those
purposes in Conference at Berlin, and have appointed as their Plenipotentiaries, to wit:

Who, being provided with full powers, which have been found in good and due form, have successively discussed and adopted:

1. A Declaration relative to freedom of trade in the basin of the Congo, its embouchures and circumjacent regions, with other provisions connected therewith.
2. A Declaration relative to the slave trade, and the operations by sea or land which furnish slaves to that trade.
3. A Declaration relative to the neutrality of the territories comprised in the Conventional basin of the Congo.
4. An Act of Navigation for the Congo, which, while having regard to local circumstances, extends to this river, its affluents, and the waters in its system (eaux qui leur sont assimilées), the general principles enunciated in Articles 58 and 66 of the Final Act of the Congress of Vienna, and intended to regulate, as between the Signatory Powers of that Act, the free navigation of the waterways separating or traversing several States - these said principles having since then been applied by agreement to certain rivers of Europe and America, but especially to the Danube, with the modifications stipulated by the Treaties of Paris (1856), of Berlin (1878), and of London (1871 and 1883).
5. An Act of Navigation for the Niger, which, while likewise having regard to local circumstances, extends to this river and its affluents the same principles as set forth in Articles 58 and 66 of the Final Act of the Congress of Vienna.
6. A Declaration introducing into international relations certain uniform rules with reference to future occupations on the coast of the African Continent.

And deeming it expedient that all these several documents should be combined in one single instrument, they (the Signatory Powers) have collected them into one General Act, composed of the following Articles:

DECLARATION RELATIVE TO FREEDOM OF TRADE IN THE BASIN OF THE CONGO, ITS MOUTHS AND CIRCUMJACENT REGIONS, WITH OTHER PROVISIONS CONNECTED THEREWITH

Article II

All flags, without distinction of nationality, shall have free access to the whole of the coastline of the territories listed above, to the rivers there running into the sea, to all the waters of the Congo and its affluents, including the lakes, and to all the ports situate on the banks of these waters, as well as to all canals which may in future be constructed with intent to unite the watercourses or lakes within the entire area of the territories described in Article I. Those trading under such flags may engage in all sorts of transport, and carry on the coasting trade by sea and river, as well as boat traffic, on the same footing as if they were subjects.

Article III

Sellable goods, of whatever origin, imported into these regions, under whatsoever flag, by sea or river, or overland, shall be subject to no other taxes than such as may be levied as fair compensation for expenditure in the interests of trade, and which for this reason must be equally borne by the subjects themselves and by foreigners of all nationalities. All differential dues on vessels, as well as on merchandise, are forbidden.

Article IV

Merchandise imported into these regions shall remain free from import and transit dues.

The Powers reserve to themselves to determine after the lapse of twenty years whether this freedom of import shall be retained or not.

PROVISIONS RELATIVE TO PROTECTION OF THE NATIVES, OF MISSIONARIES AND TRAVELERS, AS WELL AS RELATIVE TO RELIGIOUS LIBERTY

Article VI

All the Powers exercising sovereign rights or influence in the aforesaid territories bind themselves to watch over the preservation of the native tribes, and to care for the improvement of the conditions of their moral and material well-being, and to help in suppressing slavery, and especially the slave trade. They shall, without distinction of creed or nation, protect and favor all religious, scientific or charitable institutions and undertakings created and organized for the above ends, or which aim at instructing the natives and bringing home to them the blessings of civilization.

Christian missionaries, scientists and explorers, with their followers, property and collections, shall likewise be the objects of special protection.

Freedom of conscience and religious toleration are expressly guaranteed to the natives, no less than to subjects and to foreigners. The free and public exercise of all forms of divine worship, and the right to build edifices for religious purposes, and to organize religious missions belonging to all creeds, shall not be limited or fettered in any way whatsoever.

ACT OF NAVIGATION FOR THE CONGO

Article XIII

The navigation of the Congo, without excluding any of its branches or outlets, is, and shall remain, free for the merchant ships of all nations equally, whether carrying cargo or ballast, for the transport of goods or passengers. It shall be regulated by the provisions of this Act of Navigation, and by the rules to be made in pursuance thereof.

In the exercise of this navigation the subjects and flags of all nations shall in all respects be treated on a footing of perfect equality, not only for the direct navigation from the open sea to the inland ports of the Congo, and vice versa, but also for the great and small coasting trade, and for boat traffic on the course of the river.

Consequently, on all the courses and mouths of the Congo there will be no distinction made between the subjects of riverain States and those of non-riverain States, and no exclusive privilege of navigation will be conceded to companies, corporations or private persons whatsoever.